



OSGOODE HALL LAW SCHOOL
YORK UNIVERSITY

Memo

To: Public and Constitutional Law (Section C) Students
From: Kate Glover Berger
Date: January 2023
Re: December Exam Feedback

It was a joy to read your exams, to see what you have learned so far, and to reflect on your insights. Thank you for all the time, care, thought, and knowledge that you invested in the exams.

With this memo, my aim is to offer general feedback on your December exams. You each have access to your exam, which has written comments and feedback on it. That feedback should be read in conjunction with this memo, which elaborates on the issues and standards that were used in the marking of the exam. All the feedback is intended to be in service of explaining the grade you received and offering suggestions for how you might strengthen your analysis and approach going forward. I am certainly happy to meet with you individually to discuss the exam further. I'll ask that you first review the exam questions (posted on e-class), your graded exam, and this memo before scheduling a meeting.

Each exam has three numbers in the top righthand corner of the first page. The first two numbers represent the grades for the two parts of the exam (the first out of 15 and the

second out of 10), and the third, circled number is the total (out of 25). In addition to the comments and numbers you see on the quiz, you may also notice a few symbols. These are standardized symbols I use when marking:

- A check mark means “good!”, “that’s right!” and/or “yes!”.
- An asterisk (*) beside the points awarded for any particular question indicates that the response was on the border between the mark given and one mark lower. In such borderline situations, I always assign the higher point value.
- A vertical line beside some portion of text is questioning its relevance to answering the question and the analysis in your answer as a whole.
- A horizontal line underneath text indicates that the text is questionable, inaccurate, and/or incomplete in some way.
- A ‘^’ and a horizontal line after some text indicates that the idea expressed therein needs further explanation to be clear or complete.
- A set of parentheses after some text indicates that a source was needed and should have been included to support the claim being made.

The remainder of this memo sets out some general observations on the exam as a whole, as well as describing general expectations for ‘good’ answers. The appendices set out (unedited) examples of strong answers that were submitted. Thank you very much to the anonymous individuals who submitted these answers that are now serving as examples. I’ll note that the examples offered are not “perfect” – they too have room for improvement (e.g. on the use of the word ‘criminalize’ in defining the pith and substance). But they are particularly strong answers in terms of their approach and argument, and so I offer them as more data points for you as you move ahead in developing and learning your skills of legal analysis. I hope this feedback, in addition to the feedback set out on your individual exams, is helpful.

GENERAL FEEDBACK

The December exam was, on the whole, well done and showed that you are gaining such comfort and depth with the material. As is almost always the case in a class of this size, the December exam grades fell along a general curve, with the B range (i.e. 17/25 to 19.5/25) forming the vast bulk of the curve. The A range captures exam grades of 20/25 and higher. The C and D range captures grades of 12.5/25 to 16.5. The highest grade in the class was 22/25 and there were no failures. As you might know (but are likely still figuring out), the grading profile is not applied to the exam grades themselves but only to the final grades in the course once all the components are properly weighted for each of you.

As the instructions stated, your answers were assessed on (a) quality of communication and (b) quality of the analysis. Thus, strong answers were those that were directly responsive to the question asked, well-organized in their analysis, clearly identified the issues, accurate in presenting the law, well-supported by authorities and/or examples, and reached conclusions that were clearly and fully justified. The strongest answers showcased a careful and thoughtful analysis of the facts and a true comfort with the cases and authorities. On this exam and generally speaking, legal analysis can move from 'good' to excellent and outstanding when assessed on the qualities of 'quality of communication' and 'quality of analysis' by demonstrating one or more of the following qualities, all of which I saw in this year's December exams:

- Mastery of the material (e.g. nimble engagement with the law, facts, and complications; clear discernment of what is relevant and irrelevant).
- Independent thought and judgment (e.g. synthesis of the material and organization into one's own analytical framework; applying the law to the facts and not vice versa)
- Creative arguments
- Insight into issues and/or authorities
- High skill in grappling with conflicting possibilities, counter-arguments and/or alternatives

- Attention to detail in reasoning with authorities
- Detail-oriented in analysis and/or when discussing why certain missing information was important/needed
- Excellent structure and organization of reasoning

On the whole, I was so impressed with the structure of your answers. So many of you showed comfort with setting out and following an analytical structure that was consistent with the law and the question asked. As you've seen already in this course, public and constitutional law rarely offers 'right' answers but rather offers detailed frameworks for how to work through the complicated social puzzles that it confronts. Thus, the ability to build, identify, and apply those analytical frameworks is a big part of constitutional law. In general, I was also particularly impressed with answers to question 2, both (i) and (ii). The answers were well-structured, clearly reasoned, legally accurate, and factually sound.

The most common constructive comments across the exams dealt with: responding directly to the question asked; applying the relevant legal frameworks accurately and completely; carefully and precisely working with the relevant facts; and explaining your reasoning rather than moving directly from listing the facts to conclusion. For the most part, these common comments could be categorized under the heading of 'precision and justification'. In other words, the most common opportunities for strengthening answers were in terms of: reading carefully (both the facts and the questions) and explaining your reasoning – and the law -- fully and precisely. These are skills that take tremendous practice and deploying them in the realm of legal reasoning is new for most/all of you. The December exam and the feedback you receive are in service of your continued building of these skills. That said, these skills will continue to be honed well beyond law school. Indeed, it's one of the joys of any form of legal education and career – the learning of content and skills is a life-long process.

With these general comments in mind, let me now offer some feedback and observations on the individual questions.

Question 1 (15 marks)

Question 1 asked:

1. Jo is confident that the *Anti-Loitering and Freedom of Movement Act* falls under either Parliament's criminal law power (*Constitution Act, 1867*, s 91(27)) or the province's power to legislate on property and civil rights (*Constitution Act, 1867*, s 92(13)) and local matters in the province (*Constitution Act, 1867*, s 92(16)). However, Jo is not sure of the Act's pith and substance. Knowing of your expertise in public and constitutional law, Jo seeks your advice on two questions:
 - (a) What would a court likely conclude is the pith and substance of the *Anti-Loitering and Freedom of Movement Act*?
 - (b) What are the possible consequences of a validity argument for Sammy's case?

They ask you to fully explain and support your answer.

As a general matter, a 'good' answer to this question (and indeed, to all of the questions in this exam) was expected to:

- Provide legal advice that is clearly written and well-organized;
- Respond directly to the question asked;
- Rely on relevant authorities to support the reasoning provided;
- Demonstrate skills of legal analysis by: identifying the legal issues raised in the question, identifying the analytical frameworks that would assist with addressing this question, setting out the relevant facts, applying the governing authorities to the relevant facts, providing persuasive reasoning to support all legal conclusions, and reach a legal conclusion that responds to the question posed.

- Aim to avoid discussion of irrelevant issues and general description of public and constitutional law.

More specifically, a 'good' answer in response to question 1(a) was expected to:

- Identify the issue at stake, namely what a court would likely conclude is the pith and substance of the *Act*;
- Define 'pith and substance' and identify the legal framework for identifying it (*Greenhouse Gas Pollution Pricing Act*; *Morgentaler*);
- Assess the evidence through that framework (in other words, apply the law to the facts). This required you to assess the facts, including the text and operation of the statute, to determine (i) the purpose of the *Act*, by looking to the intrinsic and extrinsic evidence, and (ii) the *Act*'s effects, by looking to its legal and practical effects.
- Weigh and assess competing facts and factors to reach a justified and well-reasoned conclusion clearly identifying the pith and substance of the *Act*; and
- Draw on any authorities and/or examples needed to support your arguments and claims.

A 'good' answer in response to question 1(b) was expected to:

- Identify the issue at stake, namely the possible consequences of a validity argument for Sammy's case;
- Demonstrate knowledge of the concept of 'validity' (i.e. determining whether the legislature that enacted a statute had the constitutional authority to do so) and how validity operates in constitutional analysis;

- Identify the possible consequences of a validity argument for Sammy;
- Draw on any authorities and/or examples needed to support your arguments and claims.

An 'excellent' answer in response to either question 1(a) or (b) was expected to meet all the expectations set out above and show excellence in at least one assessment criteria (i.e. quality of communication and/or quality of analysis), though the two often appear together.

The most common point of constructive feedback on question 1(a), by far, was to read and respond to the question asked. The question asked you to identify the pith and substance of the *Anti-Loitering and Freedom of Movement Act* ("Act"). This question (a) required you to clearly identify the pith and substance of the *Act* on the evidence set out in the fact pattern; and (b) does not ask you how the pith and substance might be classified under the heads of power. In other words, you were not asked to assess the validity of the *Act*. At the time you wrote the exam, we had not yet studied the heads of power in sufficient detail, depth, or breadth for you to engage in a full and meaningful assessment of validity. For many of the heads of power, including criminal law under section 91(27), the analysis is technical and not necessarily intuitive or simply a matter of ordinary meanings. To reflect this, the question posed was narrow and well within your expertise. Specifically, you were asked to consider what a court would likely identify as the *Act's* pith and substance (i.e. its dominant characteristic) only. Answering this question entailed applying the frameworks from, primarily, the *Greenhouse Gas Pollution Pricing Act Reference* and *Morgentaler* to the facts surrounding the enactment of the *Act*.

There was a set of very common issues that arose in the exam answers, attention to which would strengthen answers in the future. I set out these common issues here in point form for ease of reference:

- **Framing the issue:** Many of your exam answers framed the issue as ‘determining the validity of the *Act*’ or correctly articulated the issue but then sought to fully assess the validity of the *Act*. Again, the question did not ask about the *Act*’s validity, only its pith and substance. The strongest answers maintained focus on this issue.
- **Failing to reach a conclusion:** Many of your exam answers did not ultimately identify the pith and substance of the *Act*. In these cases, the answer usually identified the correct legal framework, and applied it to the evidence, but then failed to examine the evidence as a whole in order to identify and define the *Act*’s pith and substance. In doing so, these answers did not demonstrate skills of (i) grappling with facts that include competing and conflicting interests or (ii) justifying one’s legal conclusions.
- **Failing to justify conclusions:** Many of your exam answers identified the relevant evidence and identified the pith and substance of the *Act* but did not present an assessment of the evidence as a whole (i.e. did not sort through the various sources of evidence) or explain how the evidence supported the conclusion.

Sometimes failing to justify conclusions arose from statements like, “It is clear that the pith and substance is....” and “Obviously, the pith and substance is...”, when no assessment of the evidence and law had been provided to make the conclusion “clear” or “obvious”.

- **Reaching legal conclusions on insufficient information:** This was often the case when exam answers offered a full validity analysis. As I mentioned above, when you wrote the exam, we had not fully studied the heads of power and so you did not yet have familiarity with the full set of relevant authorities or structures of reasoning on which to make these arguments in a meaningful and legally complete way.
- **Lacking in specificity and/or precision:** As you likely are already becoming familiar with, precision in your language, logic, and arguments is an important feature of

legal analysis. The need for precision and specificity arises in many contexts. For example:

- **Citing authorities:** When you refer to a statutory provision in legal analysis, you should provide the provision number.
- **Summarizing the law:** When you are setting out legal frameworks, small details can make a substantive difference. For example, there is a meaningful difference between saying “intrinsic evidence (i.e. purpose clause or preamble)” and “intrinsic evidence (e.g. purpose clause, preamble)”. The former indicates that the provided list of sources of intrinsic evidence is closed, while the latter (correctly) indicates that the list of provided sources is open and non-exhaustive. When determining the pith and substance of an *Act*, it is critical to know which sources of evidence can be considered and which ones are irrelevant. Thus, the difference between a closed and open list of sources can be determinative of the outcome of the entire analysis.
- **Analyzing the evidence:** The cases identify what can and cannot be considered when assessing the pith and substance of a statute. What will always require close attention is the language of the statute being challenged and an understanding of how it operates. Attention to detail and really working with the statute – e.g. reading it actively, diagramming how it operates, considering how it applies in practice and in real situations – is an unavoidable part of any division of powers analysis. In this case, the intrinsic evidence in particular required you to be detailed in your assessment of the statute, specific in setting out the various competing and wide-reaching purposes, and willing to wrestle with those various purposes. Organizing the evidence from the statute, and setting it out expressly and specifically rather than making generalizations, helps to both clarify and amplify the persuasiveness of your arguments. A number of exam answers were too general when setting out the relevant evidence, did not provide specific

references to the statute when assessing pith and substance, and demonstrated a surface understanding of the *Act* and its operation. This makes pith and substance analyses very difficult and precludes them from being very persuasive.

- **Applying the law:** Many exam answers (accurately) indicated that there was a need to maintain a separation between the characterization step of the analysis and the classification stage, and yet, went on to analyze and define the *Act's* pith and substance in terms of the heads of power. Blending the two steps of the validity analysis set out in *Starr v Houlden* can improperly taint the analysis. The pith and substance should be assessed and articulated without reference to and independently from the heads of power.

The intent of question 1(b) was to ask you to consider how a successful validity argument would impact Sammy's case. That is, it was asking you to consider not the merits of a validity argument (i.e. it was not asking whether Sammy could successfully argue that the *Act* was invalid) but rather the consequences of the possible outcomes of a validity analysis. These are quite straightforward and are directly analogous to *Morgentaler*: if Sammy can successfully establish that the *Act* or the provision under which he is charged is invalid, then the *Act* or the provision, depending on the circumstance, would be of no force and effect under section 52(1) of the *Constitution Act, 1982* and Sammy would no longer be subject to any charges. If he cannot establish invalidity, the charges would stand and he would have to find other defences.

While this was the intended nature of the question and most of you answered it in these terms, I can see that the term "consequences" was sufficiently ambiguous that the scope of the question was not necessarily clear. As a result, I assessed each answer on its own merits. In other words, your exam answers were not measured against expectations for their content but rather were assessed in terms of their responsiveness to one of the many ways to interpret the question and their quality of communication and quality of analysis.

In general, the most common constructive comment in relation to this part of question 1 was to be sure that you clearly explain: (i) how the issue you identified and analyzed responds to the question; (ii) how the issue/outcome you identified has an impact on Sammy's case; and (iii) how your analysis fits into your argument in question 1(a). For example, in many cases, an exam answer would argue in response to question 1(a) that the *Act* was valid but then go on at question 1(b) to consider whether the double aspect doctrine applied. Yet, if the *Act* is valid, the double aspect doctrine is irrelevant for Sammy's case – the charges cannot be struck on the basis of invalidity. Thus, it is not clear why the double aspect doctrine should be addressed. In contrast, some students who concluded that the *Act* is valid, then went on to consider whether the ancillary powers doctrine applied such that the provision under which Sammy was charged would be read out of the statute. This has an impact on the outcome of Sammy's case and thus, while not necessary (as explained above), made sense to address in the circumstances. These are just two examples to highlight the point that in any legal analysis, you should be consistently considering whether the argument you are making is relevant to addressing the overall issue. If it's not, don't include it!

Question 2 (10 marks)

For question 2, you had the choice of two questions:

- i. Identify three errors in the paper that Jo is reading. Be sure to explain each error you identify, and provide and explain alternative language for the paper that would be accurate.

OR

- ii. Could Sammy successfully argue that section 3 of the *Anti-Loitering and Freedom of Movement Act* is inoperable?

Answers to question 2(i) were generally quite well done. In particular, exams that dealt with this question tended to clearly and correctly identify errors in the paper Jo was reading, and explain the errors well. The most common shortcoming of answers to this question was simply forgetting to offer alternative language that avoids the error. On this question, the strongest answers were those that were as precise as possible in identifying and correcting the error, and as well-structured as possible in the arrangement of the answer, that is, they clearly identified the error, explained why the language was inaccurate, offered new language, and explained how the new language avoids and/or corrects the error.

Answers to question 2(ii) were, in general, quite strong in identifying and describing the governing law of operability and paramountcy. Showing knowledge of the framework for analyzing paramountcy issues and understanding of the cases that develop and apply it are important for answering this question and for considering whether a conflict exists between the *Act* and the *Protection of Government Act*. Further, many answers to this question accurately identified the points of possible conflict between the federal and provincial statutes, namely when a certain kind of gathering is allowed under the provincial statute but would or could amount to a breach of the federal scheme. Where many answers could have been strengthened is in their description of and work with the facts and the operation of the statutes. Many answers took the provincial statute as prohibiting all gatherings over ten people, when this is not the case. The provincial statute allows for a variety of gatherings, including those that have received a permit. Without noting this feature of the provincial statute, assessing the possibilities for conflict was difficult and could easily lead to the conclusion that no constitutionally problematic conflict arises. This question thus offers a useful example of why reading the facts, including relevant statutory provisions, carefully and actively is critical to strong legal analysis. Offering you time for this careful reading and reflection is one of the reasons why the facts were released to you in advance of the exam.

I hope this feedback memo is helpful and, when read together with the exam and your answers, provides meaningful insight into the grade you received and opportunities for strengthening your analysis or approach going forward. If there is further feedback that would be of use to you, please do not hesitate to reach out. You will have seen the link to Calendly in order to make an appointment. Further, and as always, if you have feedback for me on the course, pedagogy and/or the exam – its expectations, format, design, content, and so on – I certainly welcome it and my future students will be grateful too.

Thank you again for your investment in the exam and your patience in receiving this feedback. I am grateful to each of you for our Fall semester and am eager for all the Winter Term (and beyond!) have in store for you.

KB

Appendix A – strong answer to question 1(a)

SAMPLE STRONG ANSWER: 1(a)

1 (a) What would a court likely conclude is the pith and substance of The Anti- Loitering and Freedom of Movement Act?

A court would likely find the pith and substance of the impugned statute, The Anti-Loitering and Freedom of Movement Act, to pertain to restricting collective gatherings as a means of restoring the perceived imbalance of power between the province and citizen groups.

The analysis below will engage with the question of what a court would likely conclude the “matter” of the law (*Starr v Houlden*, 1990) or the pith and substance of The Anti- Loitering and Freedom of Movement Act to be. Pith and substance is the primary tool used by courts to determine which order of government possesses jurisdiction and authority over a given matter, and to grapple with challenges to the validity of legislation.

As articulated by Wagner, C.J., writing for a majority of the court, in *References re Greenhouse Gas Pollution Act*, at the first stage of the division of powers analysis, a court must consider the purpose and effects of the challenged statute or provision in order to identify its “pith and substance”, or true subject matter. The court does so with a view to identifying the statute’s or provision’s main thrust, or dominant or most important characteristic (*References re Greenhouse Gas Pollution Act*, 2021). There is no single test for a law’s pith and substance – the approach must be flexible and a technical, formalistic approach is to be avoided (*R v Morgentaler*).

To this end, there are two distinct prongs to the pith and substance test – both the purpose and effect of the challenged statute or provision are analytical aids intended to discern the true matter, or pith and substance, of the impugned provision (*References re Greenhouse*

Gas Pollution Pricing Act, 2021). Courts must also identify the pith and substance of a statute or provision without regard to the heads of a legislative competence, otherwise this risks tainting the characterization process by being overly oriented towards results.

Purpose of the Anti-Loitering and Freedom of Movement Act

To determine the purpose of the challenged statute or provision, courts will consider both intrinsic evidence and extrinsic evidence (Reference re Greenhouse Gas Pollution Pricing Act, 2021).

(i) Intrinsic Evidence

Intrinsic evidence entails evidence embedded within the statute itself, including the language employed within the statute, the legislation's preamble, or purpose clauses (Reference re Greenhouse Gas Pollution Pricing Act, 2021). Intrinsic evidence consists of what the legislation itself states; the preamble will often contain wording suggestive of what the legislation is intended to accomplish.

The language of the Anti-Loitering and Freedom of Movement Act states the Government wants to "ensure that there are no further interruptions to business, private citizens' daily lives" and references citizen groups wielding "tremendous power to disrupt normal business operations, prevent access to private and public property". On its face, these clauses within the preamble are suggestive of the provincial legislature's intention to protect the province, and in particular public and private property, from interference and disruptions caused by protesters and strikers wielding organized collective power.

Concurrently, the preamble also embeds a multitude of references to protecting "public safety, security, stability, political harmony and order" – the preamble states that "citizen groups have demonstrated tremendous power", references citizens' collective gatherings as "ways that undermine public safety, security, stability, political harmony and order", condones the "use of illegal drugs and violence" and that "the Government is committed to protecting public health, safety and political stability". Taken in conjunction, these

elements of the preamble provide credence that the provincial legislature's intention is not solely limited to protecting public and private property, but that an additional element of the protection of "public safety, security, stability, political harmony and order" by regulating collective public gatherings in an effort to dissuade citizen groups from gaining collective power and disrupting the safety, balance of power and security within the province is present in the preamble.

(ii) Extrinsic Evidence

Extrinsic evidence is evidence found beyond the legislation, including the purpose as presented to the legislative actors, the legislative process and consent, the Hansard, or minutes of parliamentary committee (Reference re Greenhouse Gas Pollution Pricing Act, 2021). The case of *R v Morgentaler* is demonstrative of how courts have used extrinsic evidence to pierce beyond the legislation's masked intentions to ascertain the true purpose of the piece of legislation. Extrinsic evidence will prove to be particularly helpful for the court as it attempts to discern the true pith & substance of The Anti- Loitering and Freedom of Movement Act in the present case.

(a) Course of Events Leading up to the Legislation

Extrinsic evidence includes the event leading up to the legislation and evidence of the mischief (social issue/problem) the legislation was intended to address and which triggered the legislation. It is noteworthy that there are several events occurring within the backdrop of the current legislation being passed, which are indicative of the mischief the legislation was intended to address – including the blockades in Ottawa and Windsor in early 2022 by members of the "Freedom Convoy" and protests and job action by unionized education workers in early 2022, which heralded increased notice among the Cabinet members as to the shifting balance of power in the province. Moreover, the provincial legislature was briefed in late October 2022 by the Chief of the Ontario Provincial Police on matters of provincial security, involving property concerns for federal, provincial and private institutions and disruptions to Queen's Park, trade of illegal drugs and weapons, and several major hospitals and universities within the provinces, and disruptions to workers,

owners, business owners and customers, and the provincial legislature was further briefed at the beginning of November 1, 2022, by the Assistant Deputy Minister of Labour and Education about the possibility of extended disruptive protests to occur in the summer of 2023. Both briefings posed valid concerns for the province's property concerns for federal, provincial, and private institutions, and raised questions of safety and security, and occurred before discussions of the Bill and the legislation, suggesting that these incidents (the collective gathering and accumulation of power by citizens) were the mischief the legislation was intended to address.

(b) Parliamentary readings

During the Parliamentary readings of Bill-44 in the legislature, the Parliamentary discussion primarily revolved around concerns for protecting property and businesses – during the first reading, the discussion was largely consumed with discussion of security and economic concerns for major cities and businesses within the province, and the second reading included discussion of how to protect against violence and property damage and concerns about the province's international reputation. Of note is the absence of any discussion of the balance of power shifting from the government to citizen powers nor the framing of the balance of power as the true evil for which the legislation was intended to address (unlike in Morgentaler, where concerns about the privatization of healthcare were not even broached in the Bill readings until the second reading and discussions revolved solely around the framing of abortion as a moral problem), this seems to provide more credibility towards the idea of legislation being tailored to protection of private/public property and provincial security and the economy. There were, however, some off-handed comments captured on the record by MPPs expressing fears of being unable to reach their vacation homes and ski resorts due to traffic – as transcripts are included in extrinsic evidence to be considered, this might be demonstrative of MPP's concerns with personal stake as opposed to public safety.

(c) Speed of Legislation's Enactment

An additional factor courts have taken notice of is the speed at which legislation has been debated and enacted. Despite commissioning study results on possible responses to the power shift in the province and a possible Freedom and general strike to be conducted by senior analysts from provincial ministries, the bill was debated, enacted and passed before the study results had been received (the deadline was set for December 15, 2022, while the bill came into effect over a month prior to the deadline on November 10, 2022). In the case of *R v Morgentaler*, courts took special notice of this in an analogous manner to find the legislature was masking its true intention— the province had commissioned a study on healthcare costs and were still awaiting report results when the bill was enacted. Thus, there was a disconnect in the argument passed in the Legislature to combat the privatization of healthcare system; in the current case, a similar disconnect is present between the province’s stated intentions of protecting provincial security when evidence from the studies, including possible legislative and executive responses, had not yet been ascertained from the respective ministries.

(d) Point of Contention: Cabinet Members’ Informal Discussions

Courts have not previously admitted cabinet members’ informal discussions as extrinsic evidence, and the case law suggests that there might be some resistance against the legislatures’ informal discussions being admitted. Although the cabinet members’ discussions were reflective of a singular concern/focus with the perceived power shift within the province and fears around the accumulation of collective power, I am not entirely convinced, based on the current state of case law, that courts would take this into consideration as extrinsic evidence.

In the case of *Morgentaler*, *Hansard* evidence (which is now accepted as evidence) was admitted with the pointed note that the court remain ‘mindful of the limited reliability and weight of *Hansard* evidence’. Moreover, courts have a documented history of ‘balking at admitted evidence of legislative debates and speeches’, which were considered as having ‘little evidential weight’. The primary criticism of evidence of this nature was its inability to represent the ‘intent’ of the legislature – courts might find that informal discussions among Cabinet members no more admissible than regular conversations between Cabinet

members, for the very reason that it was not part of the formal agenda of any Cabinet meeting, and thus holds little substantial weight to represent the ‘incorporeal body’, the legislature’s, intention.

It should be noted that, were the Court to admit cabinet members’ informal discussions as extrinsic evidence, this would weigh heavily in favour of finding that the background and purpose of the legislation was not predominantly concerns of protecting private property and security (which were not a predominant feature of the initial casual conversations) but rather, with unilaterally addressing the perceived power shift away from provincial governments to ideologically-aligned citizen bodies and their ability to overtake public spaces and affect public action.

Effect of the Anti-Loitering and Freedom of Movement Act

Next, in considering the effects of the challenged legislation, the court can consider the legal effect, effects flowing directly from the provisions of the statute itself, and the practical effects, the “side” effects that flow from the application of the statute (Reference re Greenhouse Gas Pollution Pricing Act, 2021).

(i) Legal Effects

The “legal effect” refers to how the legislation as a whole affects the rights and liabilities of those subject to its terms, and is determined from the terms of the legislation itself (*R v Morgentaler*). The legal effect is often a good indicator of the purpose of the legislation, but is relevant in constitutional characterization even when it is not fully intended or appreciated by the enacting body (*Morgentaler*).

s. 2 through to s. 5 of the Anti-Loitering and Freedom of Movement Act operates to criminalize all gatherings over 10 people that are not merely personal or recreational or obtained without a permit through the designated Commission. In the case of *R v Morgentaler*, the court took notice of the issue of offences imposed, concluding that the strict penalties (consisting of both a fine and imprisonment) were an indicator that the

legislation was about criminal law imposed to punish people for performing certain medical procedures. Similarly, s. 5 of the Anti-Loitering and Freedom of Movement Act imposes fines for an individual of upwards to \$4000 and penal consequences of imprisonment of up to 1 year for individuals found contravening the act and gathering collectively without a permit – the combination of both a penalty and imprisonment in this case demonstrates that the legal effects of the Act are akin to the effects of regulation on criminalizing gatherings.

(ii) Practical Effects

Practical effects are the ‘side’ effects flowing from the application of the statute on the ground (Reference re Greenhouse Gas Pollution Pricing Act, 2021). The analysis of pith and substance is not restricted to “the four corners of the legislation”. Practical effects include effects that may not have been intended by the legislature, but that have occurred nevertheless as the law is implemented on the ground.

In the present case, the Anti-Loitering and Freedom of Movement Act would operate to effectively restrict all non-personal, non-recreational gatherings over ten people and without an obtained permit. Beyond the realm of gatherings like protests and festivals (which the legislation explicitly had in mind), this would also serve to preclude and criminalize informal larger gatherings – including business or religious meetings, or unplanned, impromptu meetings, and thus the legislation noticeably overreaches in its scope and captures and criminalizes an assortment of unintended gatherings. Further, as in the case of *R v Morgentaler*, there is no evidence suggesting that gatherings of 10+ people specifically pose any link to causing danger in terms of violence and damage to private property, or provincial security

PITH & SUBSTANCE CONCLUSION

Taking the evidence above into consideration, courts have established that no one factor is determinative but that all evidence must be considered in its totality. The combination of both legal and practical effects suggestive of the legislation as criminal law, coupled with

considerable extrinsic evidence suggestive of the legislature's intention to combat and remedy the perceived power shift within the province serves to outweigh the masked intentions of the legislature as delineated by the intrinsic evidence. Thus, a court would likely to find the pith and substance of the impugned statute, The Anti-Loitering and Freedom of Movement Act, to be about criminalizing collective gatherings as a means of restoring the perceived imbalance of power between the province and citizen groups.

APPENDIX B – Sample Strong Answer – QUESTIONS 1(a) and (b)

(a) What would a court likely conclude is the pith and substance of the *Anti-Loitering and Freedom of Movement Act*?

THE ISSUE: What would the court likely find to be the pith & substance, or true subject matter, of the provincial Legislature's Bill 44: Anti-Loitering and Freedom of Movement Act? Would this pith and substance likely fall under a provincial head of power under s. 92 or federal head of power under s. 91 of the Constitution Act, 1867?

I. What is the pith and substance and why do we have it?

The pith and substance of a legislation or statute helps us determine what the law is really about. It helps us answer questions such as, "What is its dominant characteristic?" and "What is the law's true subject matter?" We can determine the legislation's pith & substance using a two-step analytical framework established in *References re Greenhouse Gas Pollution Pricing Act*. The reason why we have this test is simply because courts needed a way to determine, as a constitutional matter, what the true purpose and effect a legislation had beyond what is stated by elected officials in Parliament or the Legislature.

II. How can we apply the pith & substance framework to this case?

RULE: To determine the pith and substance of the Act, we will need to determine both the purpose and effect of the legislation (*References re Greenhouse Gas Pollution Pricing Act*).

PURPOSE: We do not take the legislature's stated purpose of the statute at face value. Here, we must look towards both intrinsic and extrinsic evidence to identify the true purpose behind the legislation.

1. Intrinsic Evidence:

What does the text of Bill 44 say?

The Preamble of Bill 44 tells us that the government's stated purpose is to "prohibit certain kinds of gatherings in the province without a permit" for the reason of protecting the province's public health, safety, and political stability. The provisions of the legislation give us insight into the purpose. Specifically, sections 3 and 5 declare that any organizing of participating in a prohibited gathering is an offence punishable by either a fine of \$4,000 or imprisonment up to 1 year for individuals contravening this Bill.

2. Extrinsic Evidence:

What do the events and debates leading up to the event suggest?

When looking at what created the need for a piece of legislation, the courts will first want to ask, "What mischief is this statute is trying to address?". Here, we rely on evidence of the Hansard minutes and government reports to determine what was debated and considered by the members during the legislative process. This is important because it can confirm the legislation's stated purpose in the text of the Bill, or it may be inconsistent with the stated purpose.

The Freedom Festival and general strike seem likely to be the catalyst for this legislation due to the legislation being introduced very quickly after Cabinet's briefing of these events. In the first and second readings of the Bill, the discussion was focused on the security and economic concerns which can arise from large festivals and protests. It also touched on the province's international reputation and concerns about weapons and drug trafficking (as cited from the OPP's briefing). This seems to be generally consistent with the stated purpose of the legislation in the text of the Bill, which to recap, was to "protect public health, safety, and political stability". However, there were some "offhand comments" captured by

Hansard where MPPs expressed fear of traffic disruptions that could prevent them from getting to their ski resorts and cottages. While this seems to imply that there might be some ulterior motive for the legislation, like in the case of *Morgentaler*, the difference here is that the concerns expressed by the MPPs, albeit not fully appropriate in the context, are aligned with the Bill's purpose of preventing disruption to the "normal flow of traffic" and "peaceful enjoyment" of residents in Ontario. MPPs are not just lawmakers; they are citizens too. I find that there is no concern about these comments because they represent concerns consistent with the general purpose of the legislation.

How might the speed of the legislature's debate and passing of Bill 44 impact our understanding of the purpose?

However, the speed at which the legislation was passed, in the absence of government studies, is cause for reasonable concern and inquiry. On November 3, Cabinet discussed their concerns about their perceived powerlessness when faced with the possibility of two major gatherings in the following year. This was when Cabinet requested for their provincial ministries to prepare government reports on the "state of citizen action" in the province and potential responses by December 15. Just two days after that meeting, without waiting for the requested reports, the government introduced Bill 44 and rushed it through an "expedited process" for it to be passed and in effect by November 10.

Taking a pause here, we can clearly see that Cabinet did not wait for the reports from trusted and experienced administrative deputies and moved ahead to introduce the Bill just two days later. Again, returning to the court's main question: "What is the mischief to be solved here?" If Cabinet was genuinely concerned about the mischief caused by large gatherings, such as economic and security concerns, why would they not rely on these reports and carefully debate the concerns in the legislature?

This is analogous to the reasoning of Justice Sopinka in *R v Morgentaler*, where the hurried passage of the Medical Services Act and disregard of potential report findings in reports suggested that the true purpose of the legislation was not to prohibit private healthcare

due to higher costs, but instead on moral grounds to stop Mr. Morgentaler from opening abortion clinics. In our case, Cabinet is anticipating the Freedom Festival and general strike in a few months. We can reasonably infer from this that Cabinet's hurried passage of the Bill and failure to wait for a government report suggests that it has acted in part based on its "fear" of the shifting of power to citizen groups and being perceived as "powerless" by the public, contrary to the stated purpose of safeguarding the province's economic and security interests.

On this claim, the government may argue that they were acting upon the information and briefing provided by both the Chief of the Ontario Provincial Police and the Assistant Deputy Minister of Labour and Education. They may submit that the evidence provided during those two meetings, including the risk of immobilization in parts of Toronto and 24 hours/day protests, was sufficient evidence backing their decision to introduce and pass the Act. It is noted that the Police Chief was "confident" that the Festival would create many of the problems that this Act intends to legislate against. This is certainly distinguishable from the Morgentaler case where the only catalyst behind the Legislature's decision to pass the Medical Services Act was a "rumour" regarding Mr. Morgentaler's intention to open abortion clinics. In our case, there does seem to be more of a reliance on credible and factual evidence for Cabinet's concerns.

In summary, what we have now is compelling arguments on both sides. While on one hand we have evidence of official debates and briefings implying that the legislation's true purpose is to protect Ontario's safety and economic interests, we also have strong reasons to believe that the purpose is actually about addressing the government's fear of perceived powerlessness. Here, the court may rely on the case of Morgentaler to decide on this case at hand.

While it ultimately depends on what the courts will decide, based on the facts of our case, it seems like the court will likely distinguish this case from Morgentaler and decide that the true purpose of the Act is for the protection of provincial security, economic, and protection of property interests. I cite two reasons for this finding based on the court's similar reasoning in Morgentaler:

1. While the Ontario Cabinet discussed general fears of “perceived powerlessness” in their meetings, ultimately the debate in the Legislature was dominated by discussion about economic and security concerns. The key argument here is that while the introduction of the Act may have been motivated in part by fear, the official debate in the legislature by MPPs was “dominated” by discussions of economic and safety concerns. Unlike in Morgentaller, where the debate was around the “moral” issues of abortion, the debate in the Ontario legislature corroborated the purpose articulated in for example the Act’s Preamble.
2. There is a rational connection between the information Cabinet received during its briefings and the stated purpose for the Act. It seems that Cabinet did rely on credible information from both the Chief of the OPP and their Assistant Deputy Minister of Labour and Education. So, even if the Cabinet did not wait for the report, it does seem like they acted to introduced this Act on reasonable evidence.

Now, we will consider how the court might analyze the legal and practical effects flowing directly and indirectly from the Act.

EFFECT

What are the legal effects flowing directly from the provisions of the statute?

One legal effect was creating a offence for anyone gathering in groups of 10 or more for any purpose other than personal or recreational. While the text of the law does not explicitly specifically prohibit a “protest” or “strike”, the act of banning most “gatherings” is simply the same effect. Again, this is similar to the reasoning in Morgentaler where although the Medical Services Act claimed to only be banning outside-of-hospital services, what it did in effect was prohibit private abortion clinics. I find that this is very much the same case in Bill 44. The legal effects of this Act, specifically in provisions 3 and 5, are also no different than if the province had criminalized union strikes and protests in general.

What are the practical effects?

The most direct practical effect is that the Freedom Festival, planned for January 2023, and the general strike by unionized workers, planned for summer 2023, will not be able to be held. More broadly, we can see that the Act, in effect, prohibits all strikes and protests in the province.

Summary of Pith & Substance

The purpose of this Act may be based on the Legislature's interest in protecting the security and economic interests of the province in light of potential strikes and protests. The legal effects, however, seems to be contradictory in that it suggests the pith & substance may be to criminalize union strikes and protests, despite using vague language like "gatherings". The reason for this is because the effects fulfill the classic requirements of a criminal law: a penalty (penalties & imprisonment), prohibition (on gatherings), and purpose (to protect Ontario's interests). The practical effect seems likely to also be targeted at criminalizing the upcoming Freedom Festival and union strike.

Given the divergence between the purpose and effect, there may be more than one conclusion for the pith & substance of the Act:

1. 1) The pith & substance of the Act is for the protection of the province's security and economic interests, including property, business, traffic, and other local topics.
2. 2) The pith & substance of the Act is about criminalizing gatherings in the province, including union strikes and protests.

(b) What are the possible consequences of a validity argument for Sammy's case?

To form a validity argument, we will need to consider how a court may assign the potential possibilities for pith & substance (either 1 or 2, above) to either a provincial or federal power. We will be able to then determine the answer to Jo's question on whether or not there is a validity argument for Sammy's case.

The effect of determining the pith and substance of the province's Anti-Loitering and Freedom of Movement Act and assigning it to a head of power determines the validity of this piece of legislation. What is meant by validity is whether or not this order of government had the authority to enact this piece of legislation. In other words, did the provincial government act ultra vires to its constitutional authority in passing this Act?

In a federal system of government such as ours, political power is shared by two orders of government: the federal government and the provinces on the other. The unwritten principle of federalism tells us that there is no hierarchy between the federal and provincial governments, but that each is assigned "respective spheres of jurisdiction" by the Constitution Act, 1867 (Secession Reference). Under the second part of the pith & substance test, we will see whether the pith & substance of the Act falls under either provincial jurisdiction (s. 92), making it valid, or under federal jurisdiction (s. 91), making it invalid. Importantly, this test assumes that things in constitutional law are always "neat and tidy"; but this is not always the case.

Like in most areas of constitutional law, there is some ambiguity as to which head of power the P&S may fall under. I will examine how a court might approach assigning the P&S to the heads of powers under either s. 91 or s. 92.

As Jo has cited above, he believes that the pith and substance of the Anti-Loitering and Freedom of Movement Act can fall under either Parliament's or the Legislature's legislative powers. To make the analysis clearer, I have outlined the potential possibilities for the consequences of a validity argument below:

Provincial s. 92	Federal s. 91
Property and civil rights (Constitution Act, 1867, s 92(13))	Criminal law power (Constitution Act, 1867, s 91(27))
Effect:	Effect:

If we assume that the pith & substance falls under property and civil rights, then the Act will be valid. This means that the provincial law will continue to apply and be of “full force and effect” for Sammy’s case.	If we assume that the pith & substance falls under criminal law power (federal), then the Act will be invalid. This means that the provincial legislature acted ultra vires in enacting the Act. This means the entire statute also becomes invalid and is of “no force and effect”. As such, the case against Sammy under the Act will not succeed due to a finding that the legislation is unconstitutional.
Local matters in the province (Constitution Act, 1867, s 92(16)) Effect: If we assume that the pith & substance falls under local matters in the province, then the Act will be valid. This means that the provincial law will continue to apply and be in “full force and effect” for Sammy’s case.	

APPENDIX C - Sample strong answer – Question 2(i)

- i. Identify three errors in the paper that Jo is reading. Be sure to explain each error you identify, and provide and explain alternative language for the paper that would be accurate.**

Statement two

In the Quebec Secession Reference, the Supreme Court of Canada (SCC) recognized that unwritten constitutional principles emerge from its text, historical context, and judicial interpretations of the constitutions. For example, the unwritten principle of federalism can be derived from the preamble (text) of the Constitution Act, 1867, which states the provinces’ “desire to be federally united”. Similarly, the unwritten principle of judicial independence emerged from (and helped inform) the textual interpretations of section 96, which now enforces the superior courts’ status in each province. In *Toronto (City) v Ontario (AG)*, the SCC recognized that the unwritten principles cannot be used to strike down existing legislation; however, they suggested that they can assist courts in two significant ways: first, they can help courts interpret constitutional provisions and, second, they can be used to develop structural doctrines that flow from the constitution’s architecture and help “fill the gaps” within it. For example, the doctrines used to evaluate the validity of legislation, such as the doctrine of paramountcy, are informed by unwritten principles like federalism (i.e., the division of powers between federal and provincial levels of government). While the unwritten principle of federalism could not be used as a direct defence to a charge under the Protection of government Act or Anti-Loitering and Freedom of Movement Act, they could inform the use of one of the doctrines to either strike down, read down, or render the statutes inoperable. For example, one could argue, using the pith and substance doctrine, that the Anti-Loitering and Freedom of Movement Act’s “matter” falls under section 91(27), which would mean it falls outside its enacting body’s (provincial) jurisdiction and is invalid. Similarly, one could use the doctrine of interjurisdictional immunity to argue that, although perhaps valid, the Anti-Loitering and Freedom of Movement Act significantly impairs (the exercise of; COPA) the federal government’s

criminal law power and must, therefore, be read down to the extent of that conflict. In these ways, the unwritten principles can inform a but not directly serve as a defence to charges under the statutes.

An alternative formulation would be that these unwritten principles can inform (rather than serve as) a constitutional defence against a charge under one of the statutes.

Statement 3

Courts can, in fact, ‘interfere’ with the Provincial Gathering Permit Commission and the Permit Appeal Board’s decisions to grant a permit. In *Vavilov*, the Supreme Court of Canada established how courts can review administrative decision-makers’ (ADM) decisions. The SCC provides that, generally, courts are not to decide whether an ADM’s decision was correct; instead, they are only to decide whether the ADM’s decision falls within a range of reasonable outcomes (unless the ADM is dealing with a constitutional question, in which case it is held to a standard of correctness). During this process, the courts scrutinise not only the ADM’s outcome but their reasoning, ensuring that they arrived at their conclusion in a justified, intelligible, and transparent way. If they determine that decision was not reasonable or that it was not transparent, they can overrule it (‘interfere’).

It is wrong to say that this ‘interference’ would be contrary to the principle of the rule of law. The rule of law provides that all citizens and entities within Canada are subject to the same laws. ADMs are created by and have powers by virtue of statute, i.e., they are created by the legislature. Therefore, ADMs are the product of an elected body that represents the will of the majority. While ‘majority rule’ is a principle of democracy, it exists in tension with the rule of law, given that an unchecked majority rule threatens to silence minority voices (and thus subject people to the law differently). The SCC addressed this issue during the Senate Reform Reference. After considering the Senate’s role in the architecture of the constitution, the Supreme court determined that the Senate must remain an appointed body because it was meant to be a body of ‘second sober thought’ that checks the elected House of Commons. If members were elected rather than appointed, popular mandates would silence voices that do not lie in the majority. The courts act as a similar body of

second sober thought in this case. If ADMs - the products of elected bodies - were allowed to make unchecked decisions, majority rule would threaten - not uphold - the rule of law.

An alternative formulation would be that the courts are restricted in their interference with ADM decisions, so as to respect those democratically elected bodies. However, they still serve as a check to ensure that an elected body, acting according to the will of the majority, does not silence minority voices (therefore, upholding the rule of law).

Statement 4

The doctrine of interjurisdictional immunity (IJI) can be used to challenge the applicability of the statute under which someone has been charged. Assuming the legislation is valid (it's pith and substance falls within the appropriate jurisdiction) one could argue that it still 1) touches on the other level of government's core jurisdiction and 2) sufficiently impairs the exercise of that level of government's competence in that area. The consequence of a successful applicability (IJI) argument would be that the act under which the individual is charged would be read down to the extent that it affects the other level of government's core.

There is, however, some merit to the scepticism surrounding the use of IJI as a defence. For example, a successful IJI argument depends on how courts interpret the core. A broad interpretation, such as that used in COPA, means that the core is large and the threshold for interference is low. In turn, this means that the potential for a read-down (and perhaps a successful defence) is relatively high. Conversely, if a narrow approach is used (as in Western Bank), the core is smaller and the threshold higher, which means less conflict and more permitted overlap. Given the contemporary trend towards co-operative federalism (allowing overlap in the jurisdiction between levels of government), courts are likely to favour the narrow approach (less conflict), which hinders IJI's effectiveness as a defence. Additionally, IJI has only ever been used to find that provincial laws have unduly encroached on federal jurisdiction. Although not impossible, it would be surprising to see it used to read down a federal law. Therefore, IJI might more effectively serve as a defence against a provincial, rather than federal, law.

An alternative formulation would be: given the dominant tide towards co-operative federalism, IJI is of limited use to someone charged under a statute who is seeking to defend that charge.